

INTA Practice Guides Report

Trademark Cancellations Guide

Brazil

SINGLE JURISDICTION REPORT

CONTRIBUTOR(S)

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I. Availability — A. Availability

- Cancellation of a trademark is available for: national marks; international marks (Brazil acceded to the Madrid Protocol in October 2019.); This jurisdiction is not a member of the European Union; we have no European Union Trade Marks.
- "Cancellation" is not defined by legislation.
- Cancellation actions can be filed online at the following URL: <http://www.inpi.gov.br>.

II. Grounds — A. Absolute Grounds

- The following absolute grounds may be raised in cancellation proceedings: the mark is descriptive; the mark is misleading and/or deceptive; the mark lacks distinctiveness; the mark is generic; the mark consists of a geographical indication; the mark is against public policy or principles of morality; the mark has not been authorized by competent authorities pursuant to Article 6ter of the Paris Convention; the mark includes a badge or emblem of particular public interest; the mark is prohibited in this jurisdiction.

II. Grounds — B. Relative Grounds

- The following relative grounds may be raised in cancellation proceedings: there is an earlier application or registered mark; there are earlier use-based rights in an unregistered mark; the mark is covered by a copyright; the mark is a company name; the mark is notorious or well known (Article 6bis of the Paris Convention); the trademark application was filed or the registration was granted in the name of an agent or other person with a business connection to the owner of the mark (Article 6septies of the Paris Convention); the mark is a trade or business name.

II. Grounds — C. Grounds Other Than Absolute, Relative or Non-Use

- Other than the absolute or relative grounds listed above and/or the non-use grounds listed below, there are no other grounds that may be raised in cancellation proceedings.

II. Grounds — D. Non-Use Grounds

- Non-use may be raised as a ground in cancellation proceedings.
- In relation to cancellation for non-use, "use" is defined as: Use is not defined in Brazil. Relevant factors include the field of activity in which the company is engaged, the nature of the product and its commercial scale, or the nature of the service.
- The definition of "use" provided above is derived from case law: There are various court and administrative decisions that define "use" in Brazil. All of them are considered when examining a cancellation action.
- Use by a licensee or with the consent of the proprietor constitutes use by the

proprietor.

- The time frame within which a mark must be used in order to avoid cancellation runs from: the date of registration.
- Counting from the above date, to avoid cancellation for non-use, the mark must be used within: five years, in accordance with Article 143 of the Brazilian Industrial Property Law.
- The consequences of use being interrupted are: The mark will be vulnerable to be challenged by means of a non-use cancellation action if this interruption period is five years (or more); however, if the owner of the registration proves that the lack of use was for legitimate reasons, the mark will not be cancelled, in accordance with Article 143, Section 1 of the Brazilian Industrial Property Law.

II. Grounds — E. Multiple Grounds

- An application for cancellation may not be based on multiple grounds (i.e., on a combination of absolute, relative and non-use grounds).

II. Grounds — F. International Registrations and European Union Trade Marks

- Grounds for cancellation are the same in respect of international marks as they are for national marks.

II. Grounds — G. Introduced Later in Proceedings

- Additional grounds for cancellation may not be introduced at a later stage in the proceedings.

III. Forum — A. Forum

- The forum for cancellation proceedings varies depending on the grounds on which the proceedings are brought. Cancellation proceedings based on absolute grounds may be brought before the following court or other judicial tribunal: Brazilian Federal Court. Cancellation proceedings based on absolute grounds may be brought before the following administrative body: Instituto Nacional da Propriedade Industrial (National Institute of Intellectual Property) (INPI). Cancellation proceedings based on relative grounds may be brought before the following court or other judicial tribunal: INPI. Cancellation proceedings based on relative grounds may be brought before the following administrative body: INPI. Cancellation proceedings based on non-use grounds may be brought before the following administrative body: INPI. Cancellation proceedings based on grounds other than absolute, relative or non-use grounds may be brought before the following administrative body: INPI.
- The administrative body/bodies listed above is/are not independent of the trademark registry. The INPI is the trademark registry; however, the Brazilian Federal Court is independent of the trademark registry.

IV. Standing — A. On Basis of Grounds

- The following parties have legal standing to apply for cancellation, regardless of the grounds for cancellation: any interested person. Legal interest is required.

IV. Standing — B. Person/"Interested Person" Defined

- For purposes of standing, a "person" is defined as: both natural and juridical persons.
- For purposes of standing, an "interested person" is defined as: someone who has

filed an earlier pending application to register a conflicting trademark; someone who owns an earlier conflicting trademark registration; someone who owns earlier rights in a copyright or design that conflicts with the mark that is the subject of the trademark application; someone who owns rights in a conflicting trademark that were acquired through use; someone who owns a company name that conflicts with the mark that is the subject of the trademark application; someone who is of the opinion that the mark was not registrable.

IV. Standing — C. Domestic/Foreign Applicant

- The legal standing criteria for domestic and foreign applicants are the same, regardless of the grounds for cancellation.

IV. Standing — D. Multiple Applicants

- More than one applicant may apply jointly for cancellation, regardless of the grounds for cancellation.

IV. Standing — E. Infringement Defendant as Applicant

- In a court action for trademark infringement, cancellation of the plaintiff's trademark registration may be sought by a defendant.

V. Representation — A. Qualifications

- The applicant is always required to appoint a representative (attorney, agent or other legal representative) in cancellation proceedings. The representative may be an attorney at law or an IP agent.
- The representative must be domestic, i.e., with an office in the jurisdiction.
- Additional professional qualifications required of a representative in cancellation proceedings are as follows: attorney at law or an IP agent.

V. Representation — B. Power of Attorney-- Notarization/Legalization Requirements

- A signed power of attorney must be provided to a representative by an applicant in cancellation proceedings.
- To validate the power of attorney, the following notarization/legalization requirements must be met in cancellation proceedings: for a Court Nullity Action: Power of Attorney notarized and legalized at a Brazilian Consulate; for an Administrative Nullity Action/Non-use Cancellation Action: a simple signed power of attorney suffices to be submitted to the INPI.

VI. Commencement — A. Timing

- Cancellation proceedings that are independent of opposition proceedings may never be commenced before a mark is registered.

VI. Commencement — B. Deadline

- The deadline for bringing cancellation proceedings varies, depending on the grounds for cancellation. For proceedings based on absolute grounds, the deadline is: in an administrative nullity action, 180 days counting from the publication of the granting decision; in a court nullity action, five years counting from the date of registration. For proceedings based on relative grounds, the deadline is: 180 days counting from the publication of the granting decision.

VI. Commencement — C. Statute of Limitations

- The following statute of limitations or acquiescence provisions will prevent cancellation, regardless of the grounds for cancellation: Article 174 of the Brazilian Industrial Property Law. The limitation for bringing an action for declaring the nullity of a registration is five years counting from the date of registration.

VII. Partial Cancellation — A. Partial Cancellation

- Partial cancellation of a registration is possible only if the cancellation is based on the following grounds: non-use grounds.
- For single-class registrations and for multi-class registrations, it is possible to apply for cancellation of some of the goods either within the single class or within a given class, as appropriate, without applying for cancellation of all of the goods within the class.

VIII. Length of Proceedings — A. Length of Proceedings

- The average duration of cancellation proceedings is: three years for administrative nullity actions, six years for court nullity actions, and one year for non-use cancellation actions.
- After final arguments have been made and/or oral hearings have taken place, a decision will be rendered within the following time frame: one year.

IX. Costs and Fees to Initiate — A. Costs and Fees to Initiate

- The following costs and fees are associated with initiating cancellation proceedings: attorney fees; statutory or regulatory fees; administrative costs relating to power of attorney; administrative costs relating to legalization and/or notarization.
- No official fees are refundable if an application for cancellation is withdrawn, regardless of the grounds for cancellation.

X. Documentation-- Notarization / Legalization Requirements — A. Documentation-- Notarization / Legalization Requirements

- The following documents must be notarized in cancellation proceedings, regardless of the grounds for cancellation: power of attorney (Federal Court); by-laws (Federal Court). The INPI does not require any kind of formality.
- The documentation that must be submitted and the procedures necessary to initiate cancellation proceedings vary, depending on the grounds for cancellation. The documentation and procedures to initiate cancellation proceedings based on absolute grounds are as follows: in an administrative nullity action, power of attorney; in a court nullity action, for foreign companies, power of attorney and by-laws, both duly translated into Portuguese and notarized. The documentation and procedures to initiate cancellation proceedings based on relative grounds are as follows: same as above. The documentation and procedures to initiate cancellation proceedings on non-use grounds are as follows: power of attorney.

XI. Discovery — A. Interrogatories

- No party may request that any other party answer written questions, under oath ("Interrogatories").

XI. Discovery — B. Document Requests

- No party may request that any other party produce documents in response to written document requests ("Document Requests").

XI. Discovery — C. Depositions

- No party may request that one or more witnesses for any other party appear in person to be cross-examined under oath ("Depositions").

XII. Burden of Proof — A. Burden of Proof

- The burden of proof can shift to the other party during the course of cancellation proceedings under the following circumstances: In Brazil, the burden of proof shifts to the other party in a non-use cancellation action. The owner of the mark must submit evidence of use during the critical period.

XIII. Written Arguments — A. Requirement/Deadline

- Written arguments are mandatory in a court nullity action.
- The deadline for the respondent to submit written arguments is determined by statute, rule or regulation and is: 60 days counted from the publication of the administrative nullity action in the Industrial Property Journal, in accordance with Article 170 of the Brazilian Industrial Property Law.

XIII. Written Arguments — B. Extensions to File

- Extensions of time are not available to the applicant to file written arguments.
- Extensions of time are not available to the respondent to file written arguments.

XIV. Oral Hearings — A. Oral Hearings

- Oral hearings are permitted in cancellation proceedings, but only in court nullity actions.
- The determination of whether oral hearings will take place is made by: the judge. Oral hearings are allowed only in court nullity actions.

XV. Evidence — A. To Establish Absolute Grounds

- The following types of evidence may be submitted to establish absolute grounds: all documentation that may prove the alleged grounds, including dictionary definitions, general documentation, prior decisions rendered by the INPI, and court decisions.
- Evidence must be submitted to: the INPI or the court.
- Evidence must be submitted by the following deadline: concurrently with the filing of the initial petition of the administrative nullity action, or within 60 days, or along with the court nullity action.

XV. Evidence — B. To Establish Relative Grounds

- The following types of evidence may be submitted to establish relative grounds: all documentation that may prove the alleged grounds, including dictionary definitions, general documentation, prior decisions rendered by the INPI, and court decisions.
- Evidence must be submitted to: the INPI or the court.
- Evidence must be submitted by the following deadline: concurrently with the filing of the initial petition of the administrative nullity action, or within 60 days, or along with the court nullity action.

XV. Evidence — C. To Establish Non-Use Grounds

- The following types of evidence may be submitted to establish non-use grounds: none.
- Evidence must be submitted to: not applicable.
- Evidence must be submitted by the following deadline: not applicable.

XV. Evidence — E. Applicant's Proof of Use

- The applicant is not required to submit proof of use of the mark on which the cancellation is based.

XV. Evidence — F. Applicant's Extensions of Time

- Extensions of time for the applicant's submission of evidence are not possible.

XV. Evidence — G. Additional Evidence

- Additional evidence may be submitted at a later stage in the cancellation proceedings. The deadline for submitting additional evidence is: 60 days, by means of a supplementary petition.

XV. Evidence — H. Evidence in Reply/Deadline and Extensions

- Evidence in reply is optional.
- Evidence in reply must be submitted by the following deadline: in an administrative nullity action or non-use cancellation action, concurrently with the reply or within 60 days by means of a supplementary petition; in a court nullity action, concurrently with the defense argument, as requested by the judge.
- Extensions of time for the respondent's submissions are not available.
- Petitioner cannot demand that respondent provide additional particulars relating to the respondent's proffered evidence.

XV. Evidence — I. Proof of Respondent's Use

- The respondent may submit the following kinds of evidence to prove use: invoices; catalogues; evidence of turnover; packaging; labels; price lists; advertisements; written statements; market surveys; use of the mark on the Internet; maintenance of a website; use of the mark on a social media site.
- In assessing whether "use has been made," sufficient use is demonstrated by: several factors, including commercial scale on a case-by-case basis. It is not defined by the Brazilian law or other regulation.
- The following factors are considered when determining whether a mark has been sufficiently used: the nature of the goods or services at issue; market characteristics; the scale and frequency of use of the mark; export use.
- The respondent cannot demand that the petitioner provide additional particulars relating to the petitioner's proffered evidence.

XV. Evidence — J. Consequences of Failure to Respond

- The consequences if a respondent fails to file a response or answer to a petition for cancellation are as follows: Upon request of the petitioner, the court, other judicial tribunal or administrative body may enter a default judgment in favor of the petitioner. The court, other judicial tribunal or administrative body may consider and decide the matter on the merits despite such failure. The court, other judicial tribunal

or administrative body must consider and decide the matter on the merits despite such failure.

XVI. Defenses — A. Acquired Distinctiveness

- Acquired distinctiveness can be a valid defense in cancellation proceedings based on absolute grounds. The following criteria are used to establish acquired distinctiveness: There is no legislation regulating this matter; however, the Brazilian courts accept the same documentation required by the INPI for the recognition of famous marks as evidence for acquired distinctiveness/secondary meaning.

XVI. Defenses — B. Excusable Non-use

- Non-use can be excused, thereby avoiding cancellation, if: Article 143, Section 1 of the Brazilian Industrial Property Law provides that a mark will not be cancelled due to non-use if the owner justifies the lack of use for legitimate reasons. However, those reasons are not listed in the Law and are examined on a case-by-case basis.

XVII. Monetary Awards/Attorney Fees — A. Basis/Amount of Award

- A cancellation decision may include a formal monetary award against the losing party, regardless of the grounds for cancellation. only in a court proceeding.
- Monetary awards are based on: actual losses (The judge considering the nature of the case can also determine an amount to be paid by the defeated party.).
- The amount of a monetary award is likely to be influenced by the following circumstances: the undue use of a mark in the same market; the undue use of a well-known or a highly reputed mark; the period of time within which the mark was used by a third party.

XVII. Monetary Awards/Attorney Fees — B. Attorney Fees

- The successful party is entitled to recover attorney fees in cancellation proceedings based on particular grounds, as follows: The successful party is entitled to recover all the fees that were spent so that the Judge had all the necessary information to analyze the lawsuit, such as court fees, expert fees, technical assistant fees, court bonds, among other official fees related to the lawsuit. As for attorney fees, it is not possible to recover exactly the amount spent for attorney services. The Judge determines a percentage of the value of the case that can be recovered as attorney fees (normally 20% of the value of the case), which may vary based on the grounds of the case. In addition, it is important to clarify that such fees can only be recovered if there has been litigation before the Court. There is no possibility of recovering these amounts through an administrative procedure with the INPI.
- The award of attorney fees in cancellation proceedings is: discretionary.

XVIII. Conclusion of Proceedings — A. Effect of Decision

- A decision in cancellation proceedings is valid against all third parties, regardless of the grounds on which the proceedings were brought.
- A decision ordering cancellation of a mark takes effect: in an administrative nullity action or non-use cancellation action, from the date of publication of the final decision in the Industrial Property Journal; in a court nullity action, when the decision becomes final.

XVIII. Conclusion of Proceedings — B. Withdrawal or Termination of Proceeding/Costs

- Cancellation proceedings can be terminated by withdrawing the cancellation application if they are based on: absolute grounds (Regardless of the withdrawal of the cancellation action, the INPI can still move forward with the procedure if deemed necessary/relevant.); relative grounds (Regardless of the withdrawal of the cancellation action, the INPI can still move forward with the procedure if deemed necessary/relevant.); non-use grounds (only before a decision is rendered by the INPI).
- Withdrawal of a cancellation application based on any grounds requires the approval of the court, other judicial tribunal or administrative body, regardless of the grounds for cancellation.
- Withdrawal of a cancellation application does not require the approval of the other party to the proceedings; termination is automatic regardless of the grounds for cancellation.
- When cancellation applications are withdrawn, the cost of the proceedings is borne by: In an administrative procedure at the INPI, each party bears its own costs; that is, what has already been paid by one party or the other is not returned and one party cannot ask the other to reimburse it. In a cancellation plea through litigation at the Courts, the party that withdrew is considered the loser party and the winning party may request reimbursement of all official fees spent on the lawsuit up to the request for withdrawal.

XIX. Appeals — A. Availability/Deadline

- A cancellation decision may be appealed.
- Appeals of cancellation decisions must be brought before the following deadline: in a court nullity action, 30 days counting from the publication of the cancellation decision; in a non-use cancellation action, 60 days counting from the cancellation decision. It is not possible to file an appeal against the cancellation decision of an administrative nullity action.

XIX. Appeals — B. Forum

- Regardless of the grounds for cancellation, appeals are heard by the following court or other judicial tribunal: the Federal Court of Appeals. the following administrative body: the Trademark Office Appeal Board.

XIX. Appeals — C. New Evidence

- New evidence may be submitted on appeal.

XIX. Appeals — D. Representation/Cost/Awards

- The approximate cost range of official fees (in local currency) to file an appeal is: for a non-use cancellation action or an administrative nullity action: BRL 590 for a court nullity action, the cost varies in accordance with the court's amount stipulated by the applicant in the initial petition.
- Specialist counsel is not required, but is recommended, for an appeal of a cancellation decision.
- An appeal decision can include a monetary award against the losing party even if the earlier decision did not include a monetary award. The approximate award, in local currency, would be: variable, depending on the losses and damages involved.

XIX. Appeals — E. Scope

- An appeal consists of a complete rehearing of the matter.

XIX. Appeals — F. Further Appeals/Alternatives to Appeal

- Appeal decisions may be further appealed. Appeal decisions may be appealed to: if a court decision, the Superior Court of Justice in Brasilia, the capital of Brazil, but only under special circumstances. Details regarding the deadlines and fees for further appeal are as follows: if a court decision, 15 days.
- There is no alternative procedure to an appeal.

XX. Consequences — A. Status of Mark After Cancellation

- The terminology relating to cancellation proceedings can vary from jurisdiction to jurisdiction. Within jurisdictions, the grounds for bringing a cancellation proceeding can ultimately influence the legal consequences of the cancellation. In this jurisdiction, regardless of the grounds on which the cancellation proceedings were brought, if an applicant is successful in obtaining cancellation, the legal consequence is that: the mark is considered as having been validly registered until the date of the decision to cancel the mark.

XX. Consequences — B. Licenses, Assignments, Other Transactions

- The consequences for past assignments if a mark is cancelled are: If the assignment has already been recorded by the INPI, the cancellation of the mark will not result in any consequences.
- The consequences for past licenses if a mark is cancelled are: If the license agreement embraces only the cancelled mark, it will lose its objective and be terminated.
- The consequences for past contracts if a mark is cancelled are: If the contract embraces only the cancelled mark, it will lose its objective and be terminated.

XXI. Notification to TM Office — A. Notification to TM Office

- Following a decision to cancel a mark, the Trademark Office must be formally notified of the cancellation, regardless of the grounds on which the proceedings were brought. The deadline to make the notification is: immediately after the final cancellation decision.
- The consequences of failing to meet the deadline to notify the Trademark Office are: Please note that in a non-use cancellation action or an administrative nullity action, the INPI decides the conflict. In a court nullity action, the INPI is a defendant.

XXII. Refiling of Identical Mark — A. Refiling of Identical Mark

- After a cancellation, depending upon the grounds on which the proceeding was based, an application to register the mark may be refiled: by either of the parties to the action; by a third party.
- There are no time limits for refile following the cancellation of a mark.

XXIII. Collective Marks — A. Collective Marks

- Collective marks may be registered in this jurisdiction. Collective marks are defined as: a mark used to identify products/services provided by members of the same entity.
- There are certain unique provisions in the law of this jurisdiction in relation to the

cancellation of collective marks on absolute, relative, non-use or other grounds, as follows: Article 151 of the Brazilian Industrial Property Law provides: "In addition to the grounds for extinguishment set forth in Article 142, registrations for collective and certification marks will be extinguished when: I) the entity ceases to exist; or II) the mark is used under conditions other than those provided for in the regulations governing use."

XXIV. Certification Marks — A. Certification Marks

- Certification marks may be registered in this jurisdiction. Certification marks are defined as: a mark that attests to the conformity of a product/service with particular regulations or technical specifications, notably concerning quality, nature, materials used and applied methodology.
- There are certain unique provisions in the law of this jurisdiction in relation to the cancellation of certification marks on absolute, relative, non-use or other grounds, as follows: Article 151 of the Brazilian Industrial Property Law provides: "In addition to the grounds for extinguishment set forth in Article 142, registrations for collective and certification marks will be extinguished when: I) the entity ceases to exist; or II) the mark is used under conditions other than those provided for in the regulations governing use."

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